

SENATE BILL 1479

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Section 41-51-301 and Title 55, Chapter 50, Part 3, relative to licenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 41-51-301(a), is amended by deleting the language "to provide a photo identification license" and substituting instead the language "to provide a driver license, pursuant to title 55, chapter 50, part 3, or a photo identification license", and adding the following language at the end of the subsection:

The department of correction shall coordinate with the department of safety to provide a driver license only for those inmates who possess, or previously possessed prior to incarceration, a driver license that was valid and in good standing at the time of incarceration. An inmate whose driver license expired solely due to the period of incarceration is deemed to possess a driver license in good standing for purposes of this section. If an inmate does not possess a valid driver license in good standing, then the department of correction shall instead coordinate with the department of safety to provide the inmate a photo identification license pursuant to § 55-50-336.

SECTION 2. Tennessee Code Annotated, Section 41-51-301(b)(1), is amended by inserting the language "driver license, pursuant to title 55, chapter 50, part 3, or a" immediately preceding the language "photo identification license".

SECTION 3. Tennessee Code Annotated, Section 41-51-301(b)(2), is amended by inserting the language "driver license or" immediately preceding the language "photo identification license to all eligible inmates".

SECTION 4. Tennessee Code Annotated, Section 41-51-301(b)(3), is amended by inserting the language "or driver license" immediately after the language "photo identification license".

SECTION 5. Tennessee Code Annotated, Title 55, Chapter 50, Part 3, is amended by adding the following as a new section:

55-50-356. Extension of driver license for inmates leaving incarceration.

(a) A person who held an unexpired Tennessee driver license upon imprisonment in the custody of the department of correction that expired during the person's term of imprisonment or within six (6) months after the person is discharged from incarceration, must have the expiration date of the person's driver license extended for a period of six (6) months after the person is released from the custody of the department of correction.

(b) The departments of safety and correction shall enter into a data-sharing agreement to facilitate the exchange of necessary data to carry out this section.

(c) The department of safety shall notify the license holder within three (3) days of extension that the license holder must apply to renew the holder's driver license pursuant to § 55-50-338.

(d) The departments of correction and safety are each authorized to promulgate policies and rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to implement this section.

(e) For purposes of this section, "driver license in good standing" means a driver license that is valid and not suspended, revoked, or canceled at the time of the inmate's incarceration. A driver license that expired solely due to the period of incarceration is considered in good standing for purposes of this section.

SECTION 6. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.